

Should any party fail to execute necessary documents, the other party may file an ex parte application for a shortened hearing. The court will assume control of the property and appoint an elisor.

Defendant shall take immediate steps to ensure the real property is suitable for viewing by potential buyers and make appropriate plans to relocate no later than 90 days from this court order.

If Defendant is able to qualify for purchase of the property at fair market value, Defendant may choose to purchase the property but must prequalify to do so in 15 calendar days. Defendant will be treated like any other bona fide purchaser for value.

Moving party is entitled to attorneys' fees which may be claimed by noticed motion.

SANDRA JACKSON and TOSH JACKSON v. JONATHAN CINEAS and JOSEPH CINEAS

Case No. CU25-09801

Demurrer

TENTATIVE RULING

Defendants JONATHAN CINEAS and JOSEPH CINEAS demur to Plaintiffs SANDRA JACKSON and TOSH JACKSON's complaint alleging wrongful death. Plaintiffs' complaint alleges that on December 24, 2024 Defendants negligently operated their motor vehicle and so caused Decedent's death.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].)

Analysis. A complaint is sufficient if it acquaints the defendant with the nature and extent of the plaintiff's claim. A complaint may allege ultimate facts rather than all supporting evidentiary facts. Plaintiffs allege they have standing to pursue this wrongful death action because they are Decedent's parents. (Complaint at ¶ 7.) This is sufficient pleading of ultimate facts to apprise Defendants of the nature of Plaintiffs' claims. *Nelson v. County of Los Angeles* (2003) 113 Cal.App.4th 783, 789 (*Nelson*) is not to the contrary. It correctly states that a wrongful death plaintiff must plead and

prove standing. Plaintiffs have sufficiently pled standing. Proof of standing is not a matter for demurrer. *Nelson* itself concerned proof, not pleading, as it analyzed a judgment after trial. (*Id.* at pp. 787-789.)

The court notes that Defendants' demurrer states that the complaint attaches a confusing exhibit potentially contradicting the allegation of standing. However, the complaint on file with the court attaches no exhibits.

The pleading on file with the court sufficiently alleges standing on the face of the document.

Conclusion. Defendants' demurrer is overruled.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002